

Accordingly, the Court finds good cause to deny this Motion.

Ruling

1. Defendant's Objection to Plaintiff's Supplemental Declaration is **sustained**. The motion rules do not permit the filing of a supplemental declarations unless ordered by the Court. The Court did not request any supplemental declaration. Even if the declaration was requested, it was filed late.
2. Plaintiff's Motion is **denied**.
3. Defendant is directed to prepare and e-file a conforming order, attaching a copy of this tentative ruling within five (5) days from the date of this hearing.
4. The Court requests that this Court issue a Notice of Related Case. The related case is *Gary Dartez v. City of Antioch Rent Program* (Case No. N25-1849), which is assigned to the Hon. Leonard Marquez.

16. 9:00 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINER AND CONTINUE TRIAL**

FILED BY:

TENTATIVE RULING:

Summary:

The Court **grants** its own motion, *sua sponte*, for the appointment of a Discovery Referee for this case as set forth in this tentative ruling. Defendant's request for sanctions is reserved, pending review by the Discovery Referee. No appearance is required at the May 20, 2026 hearing, unless the Parties seek further guidance from the Court.

Background

This is a continued hearing on Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). The Motion was continued from March 18, 2026 to May 18, 2026.

At the March 18, 2026 hearing, the Court made the following orders:

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court **reserved** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

(a) Conduct a comprehensive meet and confer session either in person or remotely of such

length sufficient to review each discovery request and each discovery response that are purportedly the subject of this Motion and which Defendant believes are not sufficient. Such conference shall not be cursory and should consist of significant and meaningful efforts by Counsel to address all items of outstanding discovery including a serious discussion as to why the information being sought is relevant and calculated to lead to the discovery of admissible evidence that will be of critical importance to this case; this conference shall contemplate the goal of resolving all discovery issues and should include an agreement whereby Plaintiff shall file supplemental responses that satisfy any outstanding issues within a reasonable time.

(b) Prepare a joint statement, signed by both Counsel, providing a status report to the Court communicating the results of the above “meet and confer” session, including a statement that summarizes each of outstanding discovery issues that have not been resolved, the specific and immediate plans to resolve the discovery issues and any outstanding issues which require resolution by the Court; this joint statement should provide the Court with sufficient information to make a decision whether to preclude the subject evidence from being introduced at trial. For the issues jointly resolved, the joint statement shall include proposed orders submitted to the Court that contains a stipulation resolving those issues, including an agreement to provide verified supplemental responses within a time certain;

(c) This joint statement shall be e-filed with the Court no later than May 1, 2026;

(d) The Court reserves the option to refer the resolution of this matter, and all future discovery disputes, to a Discovery Referee.

(e) The Court **continues** this Motion, *sua sponte*, on the reserved issues only to Wednesday, May 20, 2026 at 9:00 a.m.

4. Defendant’s request for monetary sanction is **reserved**.

In compliance with this order, the Parties submitted the Joint Status Report re Discovery on May 1, 2026. In reviewing the joint status report, the Court notes that it has granted eight defense motions to compel on February 18, 2026, February 25, 2026, and March 4, 2026, and ordered Plaintiffs to pay monetary sanctions and to provide code compliant discovery responses. The Parties met and conferred regarding the discovery served. After meeting and conferring, Plaintiff provided additional responses, comprising of over 1,500 pages of written discovery responses, which Defendant has not completely reviewed. They are also presumably untimely. The Parties are continuing to meet and confer and intend to resolve all outstanding discovery issues. The Parties have requested a court order requiring Plaintiff to provide full, complete, code compliance responses within 15 days and to set an Order to Show Cause and compliance hearing date.

The Court further acknowledges that Plaintiff has scheduled additional discovery related motions scheduled for July 22, 2026, August 12, 2026, September 2, 2026 and October 7, 2026. This Court finds that the Parties are unable to resolve discovery disputes informally through the meet and confer process. The Court further finds that the Parties may benefit from the assistance of a Discovery Referee.

Analyses

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. While the Parties are attempting to meet and confer to resolve outstanding discovery disputes related to prior court orders, Plaintiff has recently produced over 1,500 pages of responsive documents to discovery requests served in 2025. Previously, the Court had raised concerns with Plaintiff’s counsel about her firm’s management of this case, which had resulted in the issuance of an order to show cause, and the granting of discovery motions against Plaintiff due to untimely oppositions. Additionally, the Court notes that there are (4) pending discovery motions on calendar in the matter, scheduled for August 12, 2026, September 2, 2026, October 7, 2026. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

1. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.
2. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on August 12, 2026, September 2, 2026, October 7, 2026, , and any and all subsequently filed discovery motions. The Discovery Referee shall also resolve any existing discovery disputes between the Parties arising out of previous discovery motions and pertaining to the Court’s March 18, 2026 orders. The above hearing on these discovery motions are vacated from Department 16 are referred for further hearing to the Discovery Referee.
3. By no later than May 27, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee’s curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by May 27, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, May 29, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to

sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

4. No party has established an economic inability to the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be borne by Plaintiff Lynette Westbrook, who shall advance the fees for the initial retention of the Discovery Referee. The Court finds this a just allocation, as Plaintiff and her Counsel failure to timely comply with past discovery requests and orders triggered this entirely avoidable series of motion work. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee, the Joint Status Reports, the papers related to the hearings calendared for August 12, September 2, and October 7, 2026 within ten (10) days of appointment.
6. The Clerk of Court shall vacate all Discovery hearings calendared for August 12, September 2, and October 7, 2026. Any and all existing and future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
7. The Court shall refer Defendant's request for Sanctions to the Discovery Referee for a report and recommendation.
8. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

17. 9:00 AM CASE NUMBER: N25-1545

CASE NAME: CLAIM OF:RONAN CONIGLIO

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Crystal Coniglio's ("Petitioner") Petition for Approval of Compromise of Minor Ronan Coniglio's (DOB 6/17/2017) ("Minor") Claim is **granted**, as set forth below.

Background

On April 2, 2026 Petitioner Crystal Coniglio, parent for her child, Minor, filed the Petition through counsel Christopher Egan, Esq. to compromise the claim that Minor had against the Bay Church related to an accident that occurred on October 29, 2023 in Concord, California. The Bay Church set up an inflatable rock climbing wall. Minor Ronan Coniglio fell to the ground when the rope and harness holding him became unstable. This petition was previously granted, but the future periodic payment amount changed from the time the previous petition was filed and the date it was granted. Therefore, an amended petition is being filed to fund the future periodic payments.

In that accident, Minor sustained abdominal injury and minor laceration. Petitioner represents that Minor has received treatment at Children's Hospital in Oakland. He has fully recovered and there are